



HPGCL

**DEENBANDHU CHHOTU RAM THERMAL POWER PLANT YAMUNA
NAGAR**

A Unit of Haryana Power Generation Corporation Ltd.
(Regd. Office: Urja Bhawan, Sector 6, Panchkula)
Tele Fax No.: 01732-205887

***Tender Documents for Shop No. _____
For***

**Allotment of Shops in shopping centre at
DCRTPP Residential Complex, Yamuna Nagar**

**NIT No.178/XEN/CMD – I/MTC–182/Vol-
VII Dated: 27.04.2021**

**Executive Engineer /CMD-I
For Chief Engineer, DCRTPP,
HPGCL, Yamuna Nagar
M-9315164642**

TENDER DOCUMENTS

Tenders are invited to operate shops in various trades at ground floor in Commercial Complex DCRTTP Colony, HPGCL Yamuna Nagar on license fee basis for a period of 5 Years, extendable for another one year.

NIT No.178/XEN/CMD-I/MTC-182/Vol-VII

Dated:27.04.2021

For Executive Engineer/CMD-I,
Chief Engineer, DCRTTP,
HPGCL, Yamuna Nagar.
M-9315164642

Please visit our website hpgcl.org.in and check the tenders section. You are requested to fill the following information and send along with the NIT details via email at tender@hpgcl.org.in

Tender Information	
Source (Name of power)	DCRTPP, Yamuna Nagar
Classification	Allotment of Shops in shopping centre at DCRTPP Residential Complex, Yamuna Nagar
NIT Number	NIT No.178/XEN CMD-I/MTC-182/Vol-VII Dated:27.04.2021
Brief NIT Description	Obtaining License to operate shops in various trades in Commercial Complex DCRTPP Residential complex, Yamuna Nagar
Date on which tender available on website	
Bid Submission Date	28.05.2021 upto 13.00 Hrs
Bid Opening Date	31.05.2021 at 15.30 Hrs
Contract Info	
NIT Details	Contract for 5 Years extendable for another one year
Corrigendum detail	-
EMD Amount	Rs. 3000/-
E-services fees	Rs. 1236/-
Tender Document Cost	Rs. 1236/-

Contract Classification

1. Supply of Material – Nil
2. Works Contract – 5 Years extendable for another one year.
3. Equip. Supply & Erection – No
4. Scrap – Nil
5. Computer & Software – Nil
6. Miscellaneous (other) – N.A.

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NOTICE INVITING TENDER

NIT No.178 /XEN/CMD-I/MTC-182/Vol-VII

Date:27.04.2021

Sealed tenders are invited for allotment of shops, in the shopping Complex
DCRTPP Colony, HPGCL, Yamuna Nagar.

NIT No.	Description	Tender Fee (Rs.) (Non – refundable)	e-service Fees (Rs.) (Non – refundable)	EMD (Rs.)	Last date of submission of Bids online
NIT No. 178/XEN/CMD- I/MTC-182/ Vol-VII dated 27.04.2021	Allotment of Shops in shopping centre at DCRTPP Residential Complex, Yamuna Nagar	Rs. 1236/-	Rs. 1236/-	Rs. 3000/-	28.05.2021 (13:00 Hours)

Information Regarding Online Payment of Tender Document, eService & EMD Fee.

The Bidders can download the tender documents from the Portal: <https://etenders.hry.nic.in>.

The Bidders shall have to pay for the Tender documents, EMD Fees & eService Fee online by using the service of secure electronic payment gateway. The secure electronic payments gateway is an online interface between contractors and online payment authorization networks. The Payment for Tender Document Fee and eService Fee can be made by eligible bidders/ contractors online directly through Debit Cards & Internet Banking Accounts and the Payment for EMD can be made online directly through RTGS / NEFT.

NOTE: If the tenders are cancelled or recalled on any grounds, the tender document fees & e-service fee will not be refunded to the firm.

The Tenderers can submit their tender documents (Online) as per the dates mentioned in the key dates:-

Key Dates

Sr. No.	Department Stage	Bidder's Stage	Start date and time	Expiry date and time
1	Tender Authorization & Publishing	Tender Document Download and Bid Preparation/submission	27.04.2021 at 17:00 Hrs.	28.05.2021 13:00 Hrs.
2	PQR/ Technical Opening		31.05.2021 upto 15:00 Hrs.	-
3	Short listing of PQR or Technical Bids & Opening of Commercial/Price Bids		Will be intimated later on	

Executive Engineer/CMD-I,
For Chief Engineer/ DCRTPP,
HPGCL, Yamuna Nagar

Instructions to bidder on Electronic Tendering System

These conditions will over-rule the conditions stated in the tender documents, wherever relevant and applicable.

1. **Registration of bidders on e-Procurement Portal:-** All the bidders intending to participate in the tenders process online are required to get registered on the centralized e - Procurement Portal i.e. <https://etenders.hry.nic.in> Please visit the website for more details.
2. **Obtaining a Digital Certificate:**
 - 2.1 The Bids submitted online should be encrypted and signed electronically with a Digital Certificate to establish the identity of the bidder bidding online. These Digital Certificates are issued by an Approved Certifying Authority, by the Controller of Certifying Authorities, Government of India.
 - 2.2 A Digital Certificate is issued upon receipt of mandatory identity (i.e. Applicant's PAN Card) and Address proofs and verification form duly attested by the Bank Manager / Post Master / Gazetted Officer. Only upon the receipt of the required documents, a digital certificate can be issued. For more details please visit the website – <https://etenders.hry.nic.in>
 - 2.3 The bidders may obtain Class-II or III digital signature certificate from any Certifying Authority or Sub-certifying Authority authorized by the Controller of Certifying Authorities or may obtain information and application format and documents required for the issue of digital certificate, contact:
E - mail: eproc.nichry@yahoo.com
Help Desk: 0172-2700275
 - 2.4 Bid for a particular tender must be submitted online using the digital certificate (Encryption & Signing), which is used to encrypt the data and sign the hash during the stage of bid preparation & hash submission. In case, during the process of a particular tender, the user loses his digital certificate (due to virus attack, hardware problem, operating system or any other problem) he will not be able to submit the bid online. Hence, the users are advised to keep a backup of the certificate and also keep the copies at safe place under proper security (for its use in case of emergencies).
 - 2.5 In case of online tendering, if the digital certificate issued to the authorized user of a firm is used for signing and submitting a bid, it will be considered equivalent to a no-objection certificate/power of attorney /lawful authorization to that User. The firm has to authorize a specific individual through an authorization certificate signed by all partners to use the digital certificate as per Indian Information Technology Act 2000. Unless the certificates are revoked, it will be assumed to represent adequate authority of the user to bid on behalf of the firm in the department tenders as per Information Technology Act 2000. The digital signature of this authorized user will be binding on the firm.
 - 2.6 In case of any change in the authorization, it shall be the responsibility of management / partners of the firm to inform the certifying authority about the change and to obtain the digital signatures of the new person / user on behalf of the firm / company. The procedure for application of a digital certificate however will remain the same for the new user.
 - 2.7 The same procedure holds true for the authorized users in a private/Public limited company. In this case, the authorization certificate will have to be signed by the directors of the company.
3. **Opening of an Electronic Payment Account:** Tender document can be downloaded online. Bidders are required to pay the tender documents fees online using the electronic payments gateway service. For online payments guidelines, please refer to the Home page of the e-tendering Portal <https://etenders.hry.nic.in>
4. **Pre-requisites for online bidding:** In order to bid online on the portal <https://etenders.hry.nic.in>, the user machine must be updated with the latest Java. The link for downloading latest java applet is available on the Home page of the e-tendering Portal.
5. **Online Viewing of Detailed Notice Inviting Tenders:** The bidders can view the detailed N.I.T and the time schedule (Key Dates) for all the tenders floated through the single portal e-Procurement system on the Home Page at <https://etenders.hry.nic.in>.
6. **Download of Tender Documents:** The tender documents can be downloaded free of cost from the e-Procurement portal <https://etenders.hry.nic.in>
7. **Key Dates:** The bidders are strictly advised to follow dates and times as indicated in the online Notice Inviting Tenders. The date and time shall be binding on all bidders. All online activities are time tracked and the system enforces time locks that ensure that no activity or transaction can take place outside the start and end dates and the time of the stage as defined in the online Notice Inviting Tenders.

8. Bid Preparation (Technical & Financial) Online Payment of Tender Document Fee, eService fee, EMD fees and Submission of Bid Seal of online Bids:

- 8.1 Online Payment of Tender Document Fee + e-Service fee:** The online payment for Tender document fee, eService Fee & EMD can be done using the secure electronic payment gateway. The Payment for Tender Document Fee and eService Fee can be made by eligible bidders/ contractors online directly through Debit Cards & Internet Banking Accounts and the Payment for EMD can be made online directly through RTGS / NEFT. The secure electronic payments gateway is an online interface between contractors and Debit card / online payment authorization networks.
- 8.2** The bidders shall upload their technical offer containing documents, qualifying criteria, technical specification, schedule of deliveries, and all other terms and conditions except the rates (price bid). The bidders shall quote the prices in price bid format.
- 8.3** Submission of bids will be completed by submission of the digitally signed & sealed bid as stated in the time schedule (Key Dates) of the Tender.
- 9. Tender Closing:** After the submission of bid by the bidders, the bidding round will be closed. Once the online tender is closed, no new Vendor can bid in the tender.

NOTE:-

- A. If bidder fails to complete the Online Bid Submission stage on the stipulated date and time, his/hers bid will be considered as bid not submitted, and hence not appear during tender opening stage.
- B. From the starting date of Tender downloading to final date of submission of bid, the bidder can rework on his bid number of times he wants. If bidder submits the revised bid including price bid, original bid will automatically deleted and this revised bid will become original bid. No revised bid will be submitted after Part-I (Technical Bid) is opened.
- C. Complete bid will only be submitted after realization of tender document's fee and EMD.
- D. Bidders participating in online tenders shall check the validity of his/her Digital Signature Certificate before participating in the online Tenders at the portal <https://etenders.hry.nic.in>
- E. For help manual please refer to the 'Home Page' of the e-Procurement website at <https://etenders.hry.nic.in>, and click on the available link 'How to..?' to download the file.

Executive Engineer/CMD-I,
For Chief Engineer, DCRTTP,
HPGCL, Yamuna Nagar

General Instructions to the bidders

1. Pre-Qualifying Requirements (PQR's)/Eligibility Conditions for the tenderers :-

- a) Investment capacity**:- The investment capacity shall be established/ ascertained by examining pass book, bank solvency certificate or fixed deposits or property or investment in shares or audited balance sheet for the last six months to the satisfaction of HPGCL Authorities. No alteration would be allowed in the shops provided by HPGCL. The investment capacity required for qualification (for different shops) is as under:-
- (i) **Shop no. 2 (Milk Parlour, dairy product & frozen food Shop)**: Bidder should have investment capacity of Rs. 50,000/-.
 - (ii) **Shop no. 3(Atta and organic food shop)**:- Bidder should have capacity of investment of Rs. 50,000/-
 - (iii) **Shop no. 4 (Kiryana, fruit and vegetable shop)**:- Bidder should have capacity of investment of Rs.50,000/-
 - (iv) **Shop no. 5 (b) (Stationery, Photocopy, Mobile Recharge, e-services, cyber cafe etc. Shop)**: Bidder should have the investment capacity of Rs. 25000/- .
 - (v) **Shop no. 7 (Chemist, cosmetic Shop)**:- Bidder should have capacity of investment of Rs.50,000/-
- b)** A certificate to the effect that the shopkeeper is not black listed or did not get any insolvency certificate from any PSU of Central Govt./State Govt./SEB's/Corporations has to be furnished by them

Note:-

1. Successful Licensee will deposit Bank Guarantee as security for Rs. 15,000/-. The same will be returned to the licensee after completion of license period.
2. The Bidder can apply for more than one shop. However, under no circumstances, more than one shop will be allotted to any party.
3. The Bidders shall have to pay for the earnest money online by using the service of secure electronic payment gateway.
4. The tender shall be submitted online. Tenders without depositing online Earnest Money will not be accepted.
5. HPGCL reserves the right to reject any or all the tenders without assigning any reason. Also the management of HPGCL is authorized to defer the tender in Public interest.
6. Bidders are advised to inspect the site before the bidding.
7. The License shall be for a period of 5years, extendable by another one year with the consent of both the parties. The contract can however be closed with prior notice of 3 months by any of the parties.

2. Earnest Money Deposit:-

Sr. No.	Shop No.	Name of shop	Proposed Investment Capacity (in Rs.)	EMD	Bank Guaranty as Security for 5 years/ Extendable for one year	Lease period
1.	2	Milk Parlour, dairy product & frozen food Shop	Rs.50,000 /-	Rs.3000/-	Rs.15000/-	5 Years extendable for another one year with the consent of both the parties
2.	3	Atta and organic food shop	Rs.50,000/-	Rs.3000/-	Rs.15000/-	
3	4	Kiryana, fruit and vegetable shop	Rs.50,000/-	Rs.3000/-	Rs.15000/-	
4.	5 (B)	Stationery, Photocopy, Mobile Recharge, e-services, cyber cafe etc. Shop	Rs.25,000/-	Rs.3000/-	Rs.15000/-	
5.	7	Chemist, cosmetic Shop	Rs.50,000/-	Rs.3000/-	Rs.15000/-	
Note :- If any license apply for sale/service of product other than above will be allowed after approval of competent authority						

3. THE OFFER:-

- a) Bids are invited to operate retail outlets on “as is where is basis” in the commercial complex DCRTTP Colony, HPGCL, Yamuna Nagar as detailed in table-1 at page no.-24.
- b) Bids maybe submitted by individuals/ Corporate / partnership firms etc. online.

4. SITE DETAILS:-

The sites are having built up areas of the sizes indicated in the table-1 at page no.-24. HPGCL will provide:-

- a) The structure of shop having pucca floors and walls without internal finishes.
- b) Electricity will be as per terms and conditions of the HPGCL. The bidder will obtain electric connection and pay bills regularly at his end at his own cost.
- c) Licensee can use the parking facility provided alongwith commercial complex.

5. BID PROCESS

- a) The shops shall be allotted on license fee basis through the process of online tender. The offer shall be submitted through online, upto the time and date fixed. The bids accompanied with cost of tender document and EMD shall only be valid.
- b) No extension of any deadline will be granted on grounds that HPGCL have not responded to any query or question or not provided clarification.
- c) The successful bidder will be required to enter into a license agreement with HPGCL for the spaces allotted. An Indicative license agreement along with the terms and conditions are placed as Annexure-I
- d) The applicant shall bear all the costs associated with the preparation and submission of the BID APPLICATION FORM and in no case shall HPGCL be responsible for these costs, regardless of the outcome of the selection process. The successful bidder shall also bear all the costs for preparation of the formal agreement and no compensation or claim on this account will be entertained.
- e) HPGCL reserves the right to reject outright conditional offers without assigning any reason whatsoever.
- f) The participation in bidding process constitutes no form of commitment on the part of HPGCL, whether in respect of the selection or otherwise.
- g) HPGCL has the right to reject applicants from further consideration before the start of the bid process if it has reason to believe or apprehend that the inclusion of the said applicant or applicants may lead to misuse of the said spaces, or any other threat to the smooth functioning of the Commercial Complex.
- h) The bidder shall keep his bid valid for 180 days from the date of submission.
- i) All tenders received against open tender enquiry irrespective of whether they are from the approved contractors on the registered list or others, shall be considered, provided they are on the prescribed form and in accordance with the tender conditions and specifications.
- j) Unless exempted specifically, tenders not accompanied with the prescribed EMD/Cost of Tender shall be rejected. EMD/Cost of Tender shall be in the prescribed mode of payment as asked in the NIT, otherwise, the tender shall be liable to be rejected.
- k) Suo-moto revised price bid/supplementary Part-II will not be accepted after the last date of submission of the tender.
- l) The rate negotiations could be held up to H3 bidder, if the difference between the H1 quoted rates and those quoted by H2 and H3 is within 5% of the H1 quoted rates. In case where the H1 bidder refuses to further increase his offered price and the H2 or H3 bidders come forward to offer a price which is better than the price offered by H1 bidder, the bidder whose price is accepted becomes H1 bidder. However, in such a situation, the original H1 bidder shall be given one more opportunity to match the discounted price. In case of acceptance, he would be treated as H1 bidder.
- m) Work shall be allotted to overall H-1 bidder.
- n) No deviation shall be allowed. However, in case of deviation of taxes etc., the same be loaded for comparison purpose.
- o) Selection preference of the tendered work may be allowed as per policy of the State Government to the Industrial Units located in Haryana on the lowest valid rates if tenderer so claim with requisite documentary evidence.
- p) The bidders / contractors shall observe the highest standards of ethics during the submission of tender, procurement and execution of the contract. In case of evidence of cartel formation by the bidder(s) EMD is

liable to be forfeited.

- q) The bidder shall bear all costs including bank charges, if any, associated with the preparation and submission of his bid, and the purchaser will in no case be responsible or liable for those costs, regardless of the conduct or outcome of the bidding process.
- r) Purchaser reserves the right to cancel the NIT or to change qualifying requirement or to reject any or all the tenders so received without assigning any reason.

6) TERMS AND CONDITIONS:-

- a) The proposed sites can be used for purpose mentioned in bid & Agreement.
- b) The operator shall take up the full space on "as is where is basis", (carpet area) as demarcated in the plans at the table 1 on page no. 24 of this document.
- c) Infrastructure facilities such as electricity and water and sewerage disposal are subject to availability and technical feasibility. Priority for supply/provision of all such services will be given to operational requirements of HPGCL. The Applicant/Licensee agrees voluntarily and unequivocally not to seek claim, damages, compensation or any other consideration whatsoever on account of non availability/provision of these facilities.
- d) The EMD will be adjusted against the interest free refundable security deposit for the successful bidder. For the other bidders the EMD will be refunded after finalization of the bidding process.
- e) The license shall be for a period of 5 years, extendable by another one year maximum from the date of possession/ 16th day of issue of letter of Intent, whichever is earlier. The license, shall be granted on the following basis:
 - i) After completion of 5 years or extended period or earlier, as the case may be, the shops/booths/halls etc. shall be allotted afresh after inviting fresh tenders.
 - ii) License fee and Mtc. charges will be increased 10% per year cumulatively.
 - iii) Six months maintenance fee @ Rs. 0.75 per Sqft per month of actual covered area licensed would be payable to HPGCL separately along with the advance license fee for one month. The maintenance cost shall include MAINTENANCE to building (outside only), cleaning/sewerage /lighting services of common areas and water supply at only one point at the commercial complex by HPGCL. The internal maintenance e.g Finishing, Distempering & Paint etc. of shops/ living rooms etc. shall be carried out by the licensee at his own cost.
- f) The EMD deposit of the successful bidder shall be converted into security deposit for the said shop. The refundable interest free security deposit and bank guaranty will be returned on completion of the term of license.
- g) The license will be started from the 16th day of issue of letter of intent or date of occupation of shop, whichever is earlier. No relaxation on this account will be given or considered.
- h) Surrendering of license after payment of security deposit, even without taking possession of site will lead to forfeiture of security deposit, BG and all other payments made. The licensee voluntarily and unequivocally agrees not to seek any claim, compensation, damages or any other consideration whatsoever on this account.
- i) HPGCL decisions in the matter of evaluation of bid process shall be final and binding on all participating bidders. No compensation or claim or objection will be entertained on this account.
- j) All interested parties, wishing to inspect the sites may contact Executive Engineer/CMD-I, DCRTTP, HPGCL, Yamuna Nagar.
- k) Each Bidder will be deemed to have inspected the sites, the surroundings and inspected all necessary documentation and made all inquiries prior to participating in the bid process. The space is being offered on "as is where is basis". The Bidder would be considered having satisfied himself/herself/themselves that the space is suitable for setting up his/her/their business.
- l) The Bid application form must be accompanied with all the necessary information in Annex. A attached and HPGCL reserves the right to reject any offer that does not contain all the information requested for.
- m) While HPGCL shall adhere to the dates mentioned in the notice inviting to bid, it reserves the right to change, modify or put on hold or terminate this schedule without assigning any reasons whatsoever.
- n) HPGCL reserves the right to call for additional information/ clarifications from the bidders. .
- o) The successful bidder will be required to execute a license agreement on Rupees one hundred stamp paper (two numbers at their own cost) as given in Annexure –I, of this document with HPGCL before taking possession of the premise/s bade for. The agreement shall be registered with 1st class magistrate.
- p) Change in usage may be permitted only on approval of the competent authority of the HPGCL.

- q)** HPGCL will reject the bid, contract/ license outright in case it is found at any time that the bid document has been tampered/ modified/ altered in any manner or bid containing any false information. HPGCL reserves the right to cancel the agreement, forfeiting all amounts in case of successful bidder and also take necessary legal action. The bidder voluntarily and unequivocally agrees not to seek any claim, compensation, damages or any other consideration whatsoever.
- r)** The successful bidder shall not sublet the premises to any other person. In case subletting is noticed at any stage the allotment of shop / license to run the shop will be cancelled by HPGCL and Earnest money / security deposited will be forfeited.
- s)** One bidder shall be allotted to only one shop, In case one bidder is highest in more than one shop, he will have to surrender/forgo bid of the other shop and the same will be allotted to the other eligible bidders. In this regard, the decision of HPGCL shall be final.
- t)** The successful bidder shall establish his shop within 45 days of the issue of letter of intent failing which allotment will be canceled and security deposit (EMD converted into security deposit) and bank guaranty shall be forfeited.

Executive Engineer/CMD-I,
For Chief Engineer, DCRTTP,
HPGCL, Yamuna Nagar

Annexure-I

LICENSE AGREEMENT (To be registered with 1st Class Magistrate).

THIS AGREEMENT entered into at Yamuna Nagar on this _____ day of _____ month of 2021, between Haryana Power Generation Corporation Limited, incorporated under the companies act, 1956 having its registered office at Urja Bhawan, C-7, Sec-6, Panchkula (Haryana), India, hereinafter referred to as the 'HPGCL' (which expression shall unless repugnant to the context mean and include its successors and assigns) of the First Party

AND

M/S _____, a company incorporated under the Companies Act and having its Registered office, _____, and Branch office at _____, hereinafter called '_____' which expression shall unless repugnant to the context or meaning thereof include the successors and assigns the Second party

WHEREAS

- a. HPGCL has invited Bid Application Form for licensing to operate a retail outlet for _____ products only at the _____ demarcated as _____ in the plan attached, hereinafter referred to as 'premises'.
- b. Both second and third parties having been formed a consortium with the second party as leader through an MOU pursuant to relevant clause of the Bid application form for operation of retail outlet(s). (Only in case of application by consortium).
- c. HPGCL has agreed to provide the LICENSEE a portion of its premises measuring approximately _____ Sqft. of shop and appx _____ Sqft. Of flat carpet area at the Commercial Complex on the terms and conditions hereunder contained.

NOW THEREFORE THIS AGREEMENT WITNESSETH AND IT IS HEREBY AGREED BY AND BETWEEN THE PARTIES HERETO AS FOLLOWS:

1. The following documents shall be deemed to form part and be read and construed as part of this agreement, namely:
 - 1.1 Letter of acceptance.
 - 1.2 Bid Application Form (BID APPLICATION FORM)
 - 1.3 MOU between second and third parties (only in case of consortiums) if any.
 - 1.4 Terms and conditions.
2. The HPGCL hereby agrees to provide a portion of its premises measuring approx. Sft. of shop and aprox..... Sqft. of flat carpet area only at the place provided for these services at Commercial Complex DCRTTP Colony, HPGCL, Yamuna Nagar demarcated as XXX in the plan placed as Table-I.
3. The site shall exclusively belong to the HPGCL. The deed does not create any right, title or interest of whatsoever nature in the said premises in favour of the LICENSEE. This License Agreement shall commence from the date of signing agreement and shall continue for a period of 5 years, extendable by another one year from the date of handing over possession unless otherwise terminated as provided in Termination clause herein below.
4. That the "LICENSEE" hereby covenants as follows:
 - 4.1 I/We hereby take on license basis the space specified at DCRTTP Colony, HPGCL, Yamuna Nagar as demarcated on the conceptual site plan attached as XXX and operate a _____ outlet thereon as per terms of this agreement.
 - 4.2 I/We shall pay to HPGCL.
Fixed Six months maintenance fee of Rs.0.75 per Sq ft per month of actual covered area licensed.
5. That the LICENSEE shall pay to HPGCL a refundable interest free security deposit. The Earnest Money Deposit of the successful applicant of Rs. _____/- (Rupees _____ only) paid along with the application form will be adjusted to make up this amount. The refundable interest free security deposit will be returned only on completion of the term of license.
6. That the LICENSEE will at his own expense and cost employ/engage suitable personnel for providing efficient service in respect of storage and sale of the said products in the said premises.
7. That the LICENSEE shall appoint a Manager/Supervisor whose scope of services shall be as follows:
 - 7.1 Stores only the products of approved and licensed manufacturers and shall regularly pay the bills of the suppliers of the said materials and ingredients.
 - 7.2 Sell only packed products manufactured by the licensee using the best ingredients available and under standard hygienic procedures.
 - 7.3 Supervise the operations in the said premises.
 - 7.4 Ensure that the said Products and the said premises conform to the standards required by the Health Department of the Municipality and the Government and further ensure that the said Products are prepared up to the standards prescribed by the Food Adulteration Act, 1954 and the rules framed there under.

- 7.5 Adhere to the quality standards to the said products.
- 7.6 He shall be responsible for cleanliness and hygiene in the said Premises and to ensure that the services are conducted in a clean, proper and efficient manner.
- 7.7 Employ and engage as their own employees, trained, skilled and qualified staff and endeavour to maintain and provide services to full satisfaction and to pay their wages and salaries regularly and promptly.
- 7.8 Ensure that fire detection and suppression measures where installed inside his premises are kept in good working condition. The Licensee will at any case keep fire fighting equipment as per HPGCL requirements as indicated by the Fire officer / Authorised representative of HPGCL inside his premises in good working condition at all times and also train and keep trained all his employees in the use of these equipments. The fire officer / authorised personnel, of the licensor will have unfettered access to the said premises, for inspection / checking of fire detection and suppression measures etc. The instructions issued by the licensor's fire officer shall be obeyed and complied with fully without any demur. Any costs associated with carrying out the instructions of the fire officer/ authorised personnel of the licensor will be borne solely by the licensee.
- 7.9 Ensure that all electrical wiring, power outlets and gadgets are used and maintained properly, for guarding against short circuits / fires and observing all notified statutory provisions and standards.
8. That the LICENSEE hereby indemnifies HPGCL against any loss, damage or liabilities arising as a result of any act of omission or commission on LICENSEE part or on part of LICENSEE personnel or in respect of non observance of any statutory requirements or legal dues of any nature.
9. That the LICENSEE hereby agrees that HPGCL shall have no responsibility as regards LICENSEE employees and the employees shall be the employees of LICENSEE only and shall not be construed under any circumstances as employees of HPGCL. LICENSEE hereby indemnifies HPGCL against the claims made by LICENSEE's employees against HPGCL.
10. That LICENSEE hereby undertakes to discharge all statutory obligations and liabilities in connection with employment of its personnel in the said premises. LICENSEE hereby indemnifies HPGCL against any liability arising in connection with the employment of its personnel in the said premises by LICENSEE.
11. That no tenancy / sub-tenancy is being created by HPGCL in favour of LICENSEE under or in pursuance of this Agreement and it is distinctly and clearly understood, agreed and declared by and between the parties hereto.
 - 11.1 That the LICENSEE shall not have or claim any interest in the said premises as a tenant/sub-tenant or otherwise.
 - 11.2 That no right as a tenant /sub-tenant or otherwise is purported is intended to be created or transferred by HPGCL in favour of LICENSEE in or in respect of the said premises, except to carry out their activities over the granted space under this License Agreement.
 - 11.3 That the rights, which LICENSEE shall have in relation to the said premises, are only those set out in this Agreement.
 - 11.4 That the licensee shall not sublet the premises to any person and incase it is so done the license shall stand terminated forthwith.
 - 11.5 That the licensee shall not create any change, lien, mortgage, hypothecation etc. of any nature what so ever on the property.
12. The relationship between HPGCL and LICENSEE under and / or in pursuance of this Agreement deed is as between Principal and Principal. Consequently, neither party shall be entitled to represent the other and / or make any commitment on behalf of and /or with traders or any other party. Furthermore, no relationship in the nature of Partnership or Association of persons is hereby being created or intended to be created between HPGCL on the one hand and LICENSEE on the other hand in connection with and / or relating business to be operated by LICENSEE at the said premises.
13. LICENSEE shall deliver to HPGCL peaceful vacant physical possession of the Demised Premises at the end of the term in accordance with this Agreement, in the same condition in which it is licensed except for reasonable wear and tear and acts of God and nature.

Breach of Contract:

14. If any breach is committed by the LICENSEE in payment of the fee stipulated herein or in the due performance or observance of the provisions of this Agreement, the HPGCL shall be at liberty to terminate thereafter this license by giving the LICENSEE thirty days notice in writing and upon the expiry of the period of such notice, this agreement shall stand terminated, and there upon the LICENSEE shall hand over to HPGCL or its authorised agent vacant possession of the said Demised Premises. The vacant possession will be handed over to the authorised personnel of the licensor. The licensee will return the licensed premises/shop free of all encumbrances and clear all outstanding dues of any kind.
 - 14.1 That the said premise which has been handed over to the licensee under this Agreement will be kept in good condition and maintained properly by the licensee at their own cost. If the property is not handed over in good condition as required under this agreement, HPGCL reserves the right to seek exemplary damages and indemnification.
 - 14.2 That the licensee shall be responsible to obtain any or all permission and/or clearances from any/all authorities, governmental or otherwise and HPGCL shall not be liable or responsible for any of the act or omissions committed

on the part of the licensee.

- 14.3** That the (interest free) security deposit and bank guaranty submitted or any amount will stand forfeited in favour of the Licensor (HPGCL).
- 15.** That if the LICENSEE fails to vacate the property after the notice of 3 months, the LICENSEE shall be deemed to be an unauthorized occupant in the said premises and shall be liable to pay a penalty @ Rs. 10/- per Sq.Ft. per day for any period of occupation beyond that date along with the license fees due..
- 16.** HPGCL 's covenants and represents that it has good and marketable title to the said premise, free and clear of all liens, claims, mortgages or deeds of trust affecting the LICENSEE s possession of the Demised Premises, LICENSEE 's use of the premises, or the rights granted to the LICENSEE hereunder:
- 16.1** HPGCL covenants and represents that it has full and complete authority to enter into a license agreement under all terms, conditions and provisions set forth in the agreement, and so long as the LICENSEE keeps and substantially performs each and every term, provision and condition contained in the agreement, the LICENSEE shall peacefully and quietly enjoy the premises without hindrance or disturbance by HPGCL or by any other person claiming by, through or under HPGCL.
- 16.2** That the overall control and supervision of the premises shall remain vested with HPGCL who will have the right to inspect the whole or part of the licensed premises as and when considered necessary, with respect to its bonofide use and in connection with fulfilment of the other terms and conditions of the license agreement. HPGCL also reserves the right to enter the demised premises to repair and replace the fixtures provided by HPGCL . If any fixtures or utility relating to operation of the HPGCL is running through the area licensed, proper protection as advised by HPGCL will be done by licensee.
- 17. Termination**
- 171** If the LICENSEE is desirous of terminating the license hereby created before the expiry of the period of the license, it shall give to HPGCL , three (3) months notice in writing of its intention to terminate the license and on the expiry of the said period, the agreement shall stand terminated. HPGCL shall refund any amounts due if any after recovery/ adjustment of any amount/s due to it, except the bank guaranty will be forfeited and the refundable (interest free) security deposit which would stand forfeited in favour of the Licensor.
- 172** Upon termination of this Agreement for any reason whatsoever:
- i) LICENSEE will forthwith vacate the said premises and remove its furniture, fixtures, equipment as well as its personnel from the said premises without causing any damage to the property of HPGCL.
 - ii) The termination of this Agreement shall not release either party from its obligation to pay any sums then owing to the other party nor from the obligation to perform or discharge any liability that had been incurred prior thereto.
 - iii) Consequent to issue of termination letter, after approval of competent authority, the said premises will becomes free of all encumbrances for marketing.
- 18. Force Majeure**
- Neither HPGCL nor the LICENSEE shall be liable for any inability to fulfil their commitments and obligations hereunder occasioned in whole or in part by Force Majeure, fire, war, or any other cause beyond their reasonable control. Such Force Majeure occurrence shall be notified to the other party within 15 days of such occurrence. If such Force Majeure continues for a period of three months, the other party may be entitled to, though not being obliged to terminate this agreement.
- 19.** That the Agreement provided herein shall stand terminated at the end of the period agreed to herein i.e., on the last day of the month, from the date of handing over possession of the said premises, except that the agreement may also be terminated earlier in accordance with the terms of this Deed.
- 20.** In case of non payment of license fees and other dues or any other reasons whatsoever, the licensee voluntarily agrees to permit the licensor "HPGCL" to disconnect all utility services including electric supply to the licensed premises and also seal the licensed premises. The licensee agrees voluntarily and also undertakes not to seek any claim, compensation, damages or any other consideration whatsoever, which may arise due to such disconnection and sealing by the Licensor.
- 21.** The Licensee agrees voluntarily and unequivocally to make all payments as may be due on the due date, without waiting for any formal invoice from the licensor. The licensee also voluntarily agrees to collect the invoices from the office of the Authorised representative of the licensor (HPGCL) before the due date. Non receipt of invoice will not be a consideration for delayed or non payment of dues and may be treated as a breach of agreement.
- 22.** License fee and Mtc. charges will be increased 10% per year cumulatively.
- 23.** The Licensee voluntarily and unequivocally agrees to provide unfettered and unconditional access to the licensed premises for security checks by security officers of the licensor and also agrees to comply with all directives as may be given from time to time by the security officers of the licensor.
- 24.** The license fees, mtc. fees of shop/flat as applicable shall be deposited in advance and before 10th date of every month
- 25.** That the LICENSOR and LICENSEE represent and warrant that they are empowered, authorised and able to make this agreement.

IN WITNESS whereof the parties hereto have caused this agreement to be signed in their respective hands as of the day and year first before written.

DATE

DATE

(Authorised Signatory)

(Authorised Signatory)

**For And On Behalf Of
Haryana Power Generation Corporation Limited**

For and Behalf of Licensee

IN WITNESS WHEREOF THE LICENSEE and the HPGCL have set their hands hereunto on the day, month and year first written above in the presence of the following witness:

HPGCL

LICENSEE

GENERAL TERMS AND CONDITIONS OF AGREEMENT: -

1. Transfer

The LICENSEE, during the tenure of this license shall not transfer, assign or part with the licensed premises or any portion thereof permanently or temporarily to anybody else and shall not be allowed to take any person to share the accommodation nor in partnership without the prior written permission of the licensor, nor shall they be entitled to allow any person to occupy the licensed premises or to use any part thereof save with the prior permission in writing of the licensor.

2. Non-payment of license fees and other dues.

Non-payment of license fees and other dues within the prescribed date will constitute breach of the terms of this agreement and shall render the license liable to be revoked as per clause 14.0 (Breach of Contract) of agreement. Besides, the LICENSEE shall pay an interest of 24% per annum on the amounts of license fees and other dues payable remaining outstanding after the due date and falling in arrears. Interest shall continue to accrue till the license fees amount is finally squared up. Such interest shall be charged for the full month if the payment of license fees and other dues are not made by the due date with arrears, if any.

3. Finishes

The premises will be handed over by HPGCL "as is where is basis". That the LICENSEE will make partitions, false ceilings etc. as per requirements. The Licensee shall install its own furniture fixtures and equipment in the said premises after duly obtaining all necessary approvals from the licensor, permissions and licenses from the Municipal Corporation and such other Statutory Authorities at its own cost and expense.

4. Use of Premises

- 4.1 The subject site can be used for retailing _____ only (usage other than those listed in Annexure- B).
- 4.2 The LICENSEE at his own cost shall take the necessary statutory certificates and approvals. The LICENSEE is allowed to use the site for retail of products only.
 - a. LICENSEE may, if he so elects, install and operate within the demised premises refrigeration equipment, dispensers etc; such equipment shall be maintained in a neat and sanitary condition and shall comply with all applicable laws and ordinances. The licensee will also comply with all rules/ regulations/instructions as may be issued by HPGCL on this account.
 - b. Proper storage of the packaged products ensuring that there is no contamination or decay of products or raw materials.
 - c. Proper storage and use of energy sources.
 - d. Ensure a high standard of hygiene and cleanliness so as to create a very clean and healthy environment to attract commuters and enhance HPGCL 's image. Any physical damage or injury to the commuters or passers-byes due to lapses on the part of the LICENSEE will be the sole responsibility of the LICENSEE only and HPGCL will have no legal obligations or liability towards the injured.
 - e. Ensure that fire detection and suppression measures installed inside his premises are kept in good working condition at all times. (Refer 7.8 of this agreement also.)
 - f. The Licensee agrees voluntarily and unequivocally to provide unfettered access to the officer of HPGCL for inspection at any time and agrees voluntarily and unequivocally to abide by and comply with all instructions as may be indicated by the officer. Non compliance may be treated as breach of contract and license terminated.
 - g. Ensure that all electrical wiring, power outlets and gadgets are used and maintained properly, for guarding against short circuits / fires.
 - h. The shopkeeper can play music audible within the shop/allotted premises only. In case of violation of the same, the licensee shall pay fine of Rs. 500/- per default.
 - i. The licensee shall not bring any danger or nuisance upon the premises so as to expose other person to uncalled for danger or amount to a public nuisance for annoyance and inconvenience to public at large. The instructions in this regard by the HPGCL electrical inspector/authorised representative must be complied with. Any cost/s associated with implementation of such instruction will be borne solely by the licensee. The Licensee voluntarily and unequivocally agrees not to seek any claims, damages, compensation or any other consideration whatsoever on account of implementing the instruction issued by HPGCL officer, electrical inspector, Security officer or their authorised representatives from time to time.

5. 'As is where is basis'

That the LICENSEE will be licensed the said premises, equipments, installations, fittings and fixtures on 'as is where is basis' and the LICENSEE shall not make any additions or alterations in the licensed space, installations including electric installations and wiring without the prior permission of HPGCL in writing and when permitted by the LICENSEE the said additions and alterations shall be carried out by the LICENSEE at their own cost and they shall not be entitled to any compensation for any additions carried out by them in the licensed premises and the same shall vest in HPGCL .

6. Preparation of Premises

- 8.1** The LICENSEE must submit Preliminary Plans, Specifications and preliminary schedule as hereinafter defined, to HPGCL within 20 days of taking over possession of premises from HPGCL. HPGCL will have the right to approve the LICENSEE's preliminary plans and specifications with such changes, as it may find necessary and compliance of all such changes and modifications in the preliminary plans as suggested by HPGCL shall be mandatory. HPGCL shall communicate its approval within a period of one month from the date of submissions.
- 8.2** As used herein, Preliminary plans and specifications shall mean schematic development documents, which shall consist of:
- 6.1 General design notes.
 - 6.2 Single line floor plan
 - 6.3 Reflected ceiling plan
 - 6.4 Electrical and telephone outlet location plan
 - 6.5 Furniture and equipment layout.
 - 6.6 Finish plan.
 - 6.7 Lighting, air-conditioning and miscellaneous electricity load required.
 - 6.8 Electrical wiring plan and telecommunication and data wiring.
 - 6.9 HVAC (Heating, Ventilation and Air Conditioning) drawing.
 - 6.10 Precautions and standards for maintaining hygiene and cleanliness and disposal of solid waste and effluents.
 - 6.11 Provisions and measures for fire safety and fire fighting.
 - 6.12 Safety Procedures/standards during implementation and also during operation.

7. Hygiene

That the LICENSEE shall ensure that a high standard of hygiene is maintained in and around the site as required by the HPGCL O&M administration /municipal authorities.

8. Infrastructure Facilities

- 8.3** HPGCL will attempt to provide the services such as water (one tap in complex) & sewage, where committed in writing during the Bid application process subject to availability and technical feasibility. Any delay in provision or supply of the above-referred services shall not be a reason for reduction of license fees or deferring of the same on this account. In this case no water will be provided by the licensor inside any of the sites.
- 8.4** Electricity shall be arranged by the licensee directly from the concerned authority/department. All costs associated with provision of electricity will be borne solely by the licensee. The Licensee voluntarily and unequivocally agrees not to seek any claim, damages, compensation or any other consideration whatsoever on account of time and costs associated in making provision of electricity.
- 8.5 Air-conditioning / Refrigeration Load**
The LICENSEE shall indicate the estimated power/load requirement including air conditioning / refrigeration load along with the electricity load distribution plan as part of the preliminary plan submissions. Air-conditioning /refrigeration within the said premises shall be arranged as required by the LICENSEE at his own cost after obtaining all written approvals from the electrical department of the licensor/ authorized representative.
- 8.6 Solid Waste**
The LICENSEE will have to make arrangements for disposal of solid waste, which will be got removed from the premises on a daily basis to ensure perfect cleanliness. The Licensee will have to make arrangements for the solid waste to be separated into glass, plastic and food waste and for the food waste to be treated in a shredder to be converted into a paste. The waste will need to be expelled into a common dump or waste area provided /indicated by HPGCL. If solid waste is found disposed off on HPGCL land or premises a penalty/fine of Rs.500/- will be imposed by HPGCL for each occasion
- 8.7 Water (large users only, such as restaurants etc.)**
The licensee shall use additional good quality water at his own cost in addition to the water supplied by HPGCL at one point in the Commercial Complex.
- 8.8 Telephone**
HPGCL may give permission for installation of cables for telephone/ telecommunication equipment subject to technical feasibility. The instrument, cables and connection will be obtained by the licensee from the telephone company at his own cost. HPGCL reserves the right not to give such permission.
- 8.9 Parking**
The parking facilities provided as part of the commercial parking may be used free of cost.
- 8.10 Encroachment**
The LICENSEE will strictly not encroach up common areas including veranda circulating areas or any other space, and restrict his operation to within the area licensed. In case, the Licensee encroaches upon the common area, circulating area or any other space then a fine / compensation @ Rs.1000/- on the first occasion, Rs.2000/- on the second occasion and Rs. 5000/- on the third occasion will be imposed by HPGCL. Thereafter HPGCL reserves the right to cancel the license for breach of contract.

9 Overall control

That the overall control and supervision of the premises shall remain vested with HPGCL who will have the right to inspect the whole or part of the licensed premises as and when considered necessary, with respect to its bonofide use and in connection with fulfillment of the other terms and conditions of the license agreement. HPGCL also reserves the right to enter the demised premises to repair and replace the fixtures provided by HPGCL. IF any fixtures or utility relating to operation of the HPGCL

10 Services Provided by HPGCL

Cleaning, trash removal and washing of the common building premises, Adequate Lighting in the common areas and exterior lighting outside the Commercial Complex shall be done by HPGCL. No security services shall be provided by HPGCL. In the event that any one of the services provided for by HPGCL may be interrupted or suspended by reason of accident, repair, alterations, strikes, lockout, and except as hereinafter provided, HPGCL shall not be liable to the LICENSEE for damages/ consequences however, HPGCL shall use its best efforts to restore such services as soon as reasonably possible.

11 Maintenance & Repairs

- 11.1** That the LICENSEE shall bear the cost of minor day-to-day repairs and maintenance. All major repairs due to constructional defects shall be the responsibility of HPGCL. If the major repairs or maintenance required to be carried out by HPGCL are not carried out within reasonable time, the LICENSEE will have the right to get the needful done with prior written consent of HPGCL and deduct the cost thereof from the amount payable to HPGCL.
- 11.2** Provided however, that the LICENSEE shall be at liberty, without any such consent as aforesaid, to have normal fixtures or fittings and electric appliances, installed in the Demised Premises. The LICENSEE shall be at liberty on the termination of this license to remove or take away such fixtures, fittings and electric appliances installed by it leaving the Demised Premises, as far as possible, in the same conditions structurally, reasonable wear and tear and acts of God and nature excepted.
- 11.3** The LICENSEE shall pay Six months advance maintenance fee in advance as per clause 4.0 sub clause 4.2 of this agreement.
- 11.4** The said premises, which have been handed over to the licensee under this agreement, shall be kept in good condition and maintained properly by the licensee at their own cost. IF the property is not handed over in good condition as required under this agreement, HPGCL reserves the right to seek exemplary damages and indemnification.

12 Alterations and Renovations

The LICENSEE will be allowed to carry out any alterations or renovations within the said premises but without in any way altering or damaging the main/shell structure of the said premises. The LICENSEE will need to take prior written approval from HPGCL through a written notice prior to commencement of any alteration works and if necessary HPGCL reserves the right to ask for and review the renovation plan/drawings before providing consent. The LICENSEE will be responsible for the costs of removing debris from the premises and will be responsible for all damage to the common areas of the complex like flooring, lift cars etc during the process of alteration. Any special cleaning or drain clearance necessary as a result of the alteration works and any other costs incurred by HPGCL including any extra security costs, which are caused by, or in connection with, the works will also be to the LICENSEE's account. The occupant will have to bear the cost of the damage plus service charges. However before incurring any such costs the occupants will be briefed on the requirements by HPGCL.

13 Signage

The LICENSEE will have the right to put up signage's inside/or outside the premises only at the premises or site entrance. The signage may be illuminated or non-illuminated at the LICENSEE's option, however it will need to confirm to all governmental laws, regulations or ordinance relevant thereto. The LICENSEE will need to obtain a written approval from HPGCL by way of a notice before putting up any form of signage and HPGCL reserves the right of refuse or to suggest an alternation to the same. The signage shape and location etc are subject to architectural controls that may be issued by HPGCL. Placement of Signage's without the permission of HPGCL or placement in non approved locations will attract a penalty of Rs.1000/- per signage on the first occasion and Rs.3000/- per signage on the second occasion. Thereafter HPGCL may terminate the agreement with forfeiture of the (interest free) security deposit and advance license fees paid in its favour.

14 Additional space for Antenna and Other Utility Equipment

If any area in addition to the 'space' being licensed is required for installing any equipment related to provision of utilities, such as stand by generators, air-conditioning plants, water storage, Antenna etc and other related equipment, HPGCL may provide such space, subject to availability and technical feasibility. For additional space on ground floor, the rate will be calculated on pro rata basis of accepted rates i.e. license fees accepted for the main licensed space. If the space is given on the terrace or basement then license fee of 50% of the main license fee will be taken.

The Licensee will need to ensure that the equipment does not interfere with the other shops/ beauty of Complex and the Licensee will need to obtain prior written consent from HPGCL for installing the equipment and for requesting HPGCL to make available a suitable space/location for the same. HPGCL reserves the right

of refusal for installation of the equipment if it is of the opinion that the Licensees equipment will interfere with other shops/ beauty of the Complex.

15 Misuse

The licensee shall use the granted space under the agreement only for those services provided therein and shall not use the same for any other purposes. In case, the licensee carries on any business or uses the said premises for any other purposes the license shall deemed to have been misused and HPGCL (Licensor) shall immediately terminate the said agreement. All liabilities for misuse charges and miss-user proceedings, if so initiated shall be that of the licensee only. The Licensee will indemnify and keep indemnified HPGCL for any losses on this account.

16 Compliance with the Law

The LICENSEE shall comply with all applicable statutes, ordinances, rules and regulations of central, state governments, municipal bodies, and all applicable rules and regulations.

17 Assignment and Subletting

Any form of assigning the right to the License or subletting the whole or part thereof of the Demised Premises, will not be permitted at any point during the license period (except the consent of HPGCL). Violation of the same, will lead to the revoking of the license, with HPGCL reserving the right to forfeit all interest free security deposits and payments made.

18 Extension of License period

The License shall be for a period of 5 years, extendable by another one year from the date of possession with the content of both the parties. The period of license shall not be extended thereafter and the fresh auction shall be made.

19 Surrender

The Licensee shall have the right to terminate the Agreement during the term by giving three (3) months notice in writing of his/her/their intentions. In such a case the interest free security deposit and bank guaranty paid till date will stand forfeited in favour of HPGCL. On expiry of the said period the agreement shall stand terminated. Licensor will have the right to terminate this agreement in case of breach of any of the terms and conditions of this agreement. The interest free security deposit and advance license fee paid till date will stand forfeited in favour of HPGCL.

20 Taxes and Other Statutory Dues.

The LICENSEE shall pay all charges, assessments, electricity rates and charges and any other charges /fees that may be levied, assessed or charged against the said premises. The LICENCEE shall also pay the following charges as applicable:

Legal documentation charges as pertaining to the License

Stamp duty on each document under Indian Stamp Act 1820.

Fees and other charges, as payable to appropriate authorities under law.

Any taxes including property tax on pro rata basis and duties to statutory authorities (Municipal Council, etc.) for which the share of bill will be raised by HPGCL.

Appropriate Charges towards insurance of the said premises throughout the license period including third party insurance.

21 Insurance and Waiver of Liability

The LICENSEE will bear the cost, throughout the term of the License, for a comprehensive general liability insurance covering injury to or death of any person(s) occurring in the said premises, including death or injury caused by the sole negligence of the LICENSEE or the LICENSEE 's failure to perform its obligations under the agreement. Upon HPGCL's request, the LICENSEE shall submit to HPGCL , suitable evidence that the foregoing policy or policies are in effect. In the event of the default i.e. avoiding the insurance cover, the licensee agrees and undertakes to indemnify and hold the licensor harmless against any and all liabilities. Losses, damages, claims, expenses suffered by the licensor as a result of such default by the licensee.

22 Compliance with other acts

The LICENSEE shall bear all salaries, wages, bonuses, payroll taxes or accruals including gratuity, superannuating, pension and provident fund contributions, contributions to worker's compensations funds and employees state insurance and other taxes and charges and all fringe and employee benefits including statutory contributions in respect of such personnel and it is agreed they shall at no point of time be or construed to be employees of HPGCL and the LICENSEE shall be solely responsible for compliance with all Labour laws which shall include all liabilities of the Provident Fund Act, ESI Act, Workmen's compensation Act, Minimum Wages Act and other Labour Welfare Act in respect of its personnel.

23 Employees conduct

The LICENSEE shall ensure that all persons employed behave in an orderly and disciplined manner and that the said employees are prohibited from carrying on any unfair activities, demonstrations in the vicinity of the site.

24 Default by LICENSEE

The occurrence of any one or more of the following event shall constitute an event of default by the LICENSEE:

The failure by LICENSEE to observe or perform any of the covenants, conditions or provisions of the agreement, where such failure shall continue for a period of 15 working days, after receipt of written notice thereof by HPGCL to the LICENSEE, provided however, that if the nature of the LICENSEE s default is such that it cannot be

- cured solely by payment of money and that more than 15 working days may be reasonably required for such cure, then the LICENSEE shall not be deemed to be in default if the LICENSEE shall commence such cure within such 15 day period and shall thereafter diligently process such cure to completion;
- 24.1 The filing by or against the LICENSEE of a petition to have the LICENSEE adjudged bankrupt or a petition of re-organization or arrangement under any law relating to bankruptcy.
- 24.2 The appointment of a trustee or receiver to take possession of substantially all of LICENSEE's assets;
- 24.3 The attachment, execution or other judicial seizure of all of LICENSEE's assets.

25 HPGCL's Remedies

- Upon the occurrence of any event of default under the license agreement by the LICENSEE, then HPGCL in addition to other rights or remedies it may have, shall have the right to terminate/revoke the License agreement upon written notice to the LICENSEE and also the right, with or without the termination of license, of re-entry upon and taking possession of the Demised Premises and HPGCL may remove all persons and property from the demised premises; such property may be removed and stored in any other place of HPGCL or in any other reasonably secure place for the account of and at the expense and risk of the LICENSEE. The LICENSEE hereby shall waive all claims for damages which may be caused by the re entry of HPGCL and taking possession of the Demised Premises or removing or storing the furniture and property as herein provided and shall save HPGCL harmless from any costs or damages occasioned HPGCL thereby, and no such re entry shall be construed to be a forcible entry. Any belongings of occupier found in such shop shall be liable to be auctioned unless claimed within one month of assumption of exclusive and absolute possession by the owner. The owner shall be entitled to appropriate out of proceeds of such sale the moneys due to owner for the license. HPGCL shall form a committee for eviction of shops in the manner defined above. HPGCL shall be free to get eviction of shops in the manner defined above in presence of Police authorities to avoid any law and order problem. HPGCL will continue to reserve the right to enter into a separate license agreement for the said premises without any obligations or rights towards the original LICENSEE.
- 26 In case of any of the occupier absconds and keeps the shop closed continuously for a period of 3 weeks without HPGCL permission, the owner shall be entitled to terminate/revoke the license agreement and take possession of the shop in the manner defined in Para 25 above.
- 27 License fee and Mtc. charges will be increased 10% per year cumulatively

28 Conciliation and Arbitration

- In the event of any dispute, difference of opinion or dispute or claim arising out of or relating to this agreement or breach, termination or the invalidity thereof, shall firstly be attempted to be settled by conciliation.
- All disputes relating to this agreement or on any issue whether arising during the progress of the services or after the completion or abandonment thereof or any matter directly or indirectly connected with this service agreement shall in the first place be referred to a sole conciliator appointed / nominated by CE/DCRTPP HPGCL on receipt of such representation/ complaint from either party. The conciliator shall make the settlement agreement after the parties reach agreement and shall give an authenticated copy thereof to each of the parties. The settlement agreement shall be final and binding on the parties. The settlement agreement shall have the same status and effect of an arbitration award. The views expressed or the suggestions made or the admissions made by either party in the course of conciliation proceedings shall not be introduced as evidence in any arbitration proceedings. Any dispute that cannot be settled through conciliation procedure shall be referred to arbitration in accordance with the procedure given in the Para below. The parties agree to comply with the awards resulting from arbitration and waive their rights to any form of appeal insofar as such waiver can validly be made.

29 Arbitration Procedure

- If the efforts, to resolve all or any of the disputes through conciliation fails, then such disputes shall be referred within 30 days to a Sole Arbitrator who would be nominated by CE/DCRTPP, HPGCL Yamuna Nagar. The venue of such arbitration shall be at Yamuna Nagar. The award of the sole Arbitrator shall be binding on all parties. The cost of Arbitration shall be borne by the respective parties. There will be no objection if conciliator / or sole arbitrator nominated / appointed is an employee of HPGCL.

30 Rules governing Arbitration Proceedings

- The Arbitration Proceedings shall be governed by Indian Arbitration and Conciliation Act, as amended from time to time including provisions in force at the time the reference is made.

31 Jurisdiction of Courts

- The Court at Yamuna Nagar shall have the exclusive jurisdiction to try all disputes between the parties arising out of this agreement.

32 Notices

- That any notice under the terms of this License shall be in writing by registered post or delivered personally and signed by the party or his/its duly authorized representative giving such notice. All activities including day to day management, billing, cancellation/termination/surrender etc. will be carried out from the office of the XEN/CMD-I, DCRTPP, HPGCL, and Yamuna Nagar or by his duly authorized representative. All Notice shall be addressed as

follows:

- 33** The lease holders shall maintain standards in respect of quality of goods, arrange these in sufficient quantities and sell these at reasonable rates .If, it is found that the shop holder is charging unreasonable rates, keeping unacceptable qualities or have insufficient quantity, the Estate Officer shall issue one month's notice in writing to improve upon the deficiency and in case of no improvement, the lease shall be liable to be cancelled without further notice.

**Executive Engineer/CMD-I
For Chief Engineer/DCRTPP
HPGCL,YamunaNagar**

ANNEXURE-A

INFORMATION ABOUT TENDERERS

(To be furnished by the bidder)

1. In case of individual

1.1 Name of Business.

1.2 Whether he is an employee or is related to any employee of HPGCL, present or retired within in the past 2 years.

2. In case of Partnership

2.1 Name of Partners.

2.2 Whether the partnership is registered.

2.3 Date of establishment of firm.

2.4 Whether any partner or member of the firm is an employee or is related to any employee of HPGCL, present or retired within the past two years.

3. In case of Limited Liability Company or Company Limited by Guarantees.

3.1 Amount of paid up capital.

3.2 Name of Directors.

3.3 Date of Registration of Company.

3.4 Whether any of the Directors of the Company is an employee or is related to any employee of HPGCL, present or within the past two years.

4. The applicant shall submit date of birth certificate (Matriculation certificate or registration with municipal authority etc.), proof of residence certificate (copy of ration card, voter list photo identity card, Aadhar Card).

5. Declaration

A declaration whether the tenderer is a relative of any employee of HPGCL or the tenderer is a firm in which employee of HPGCL or his relative is a partner or any other partner in his Organisation or the tenderer is a Private Company in which employee of HPGCL is a member or Director.

Signature of Tenderer
Name & Address

Annexure – B

LINES OF TRADE NOT ALLOWED (LIST OF USAGES BANNED)

1. Any product / Service the sale of which is unlawful /illegal or deemed unlawful under any Indian act or legislation.
2. Any product the storage and sale of which may lead to or be considered as a fire hazard; such as fire crackers, industrial explosives, chemicals etc.
3. Storage and Sale of liquor and alcohol based drinks or beverages.
4. Sale of tobacco and tobacco products
5. Sale of raw meat in any form not allowed.

Signature of the Bidder

Executive Engineer/CMD-I
DCRTPP, HPGCL
Yamuna Nagar

Statement showing Areas & minimum license fee of Shops and Flats**Table-I**

Sr. No.	Shop No.	Description of Shop	Carpet Area at Ground Floor in Sft.	Rent to be quoted not less than	Carpet Area of Flat at First Floor in Sft.	License fee of flat on first floor
1	2	Milk Parlour, dairy product & frozen food Shop	425.62	Rs. 2100/-	389.45	Rs 1600/-
2	3	Atta and organic food shop	425.62	Rs. 2100 /-	389.45	Rs. 1600/-
3	4	Kiryana, fruit and vegetable shop	306.80	Rs. 2100/-	389.45	Rs.1600/-
4	5 (B)	Stationery, Photocopy, Mobile Recharge, e-services, cyber cafe etc. Shop	157.29	Rs. 1100 /-	454.57	Rs. 1850 /-
5	7	Chemist, cosmetic Shop	306.80	Rs. 2100/-	389.45	Rs. 1600 /-

Price Bid Sample (only for view/ reference please, rates to be quoted online on attached BOQ)

Sr. No. (1)	Shop No. (2)	Name of shop (3)	License fee of shop for one month (4)	License fee of flat on first floor of shop for one month (Optional) (5)	Total License fee for one month (6)
1	2	Milk Parlour, dairy product & frozen food Shop			
2	3	Atta and organic food shop			
3	4	Kiryana, fruit and vegetable shop			
4	5 (B)	Stationery, Photocopy, Mobile Recharge, e-services, cyber cafe etc. Shop			
5	7	Chemist, cosmetic Shop			

Note : The requirement of flat on first floor is optional. And minimum rates of shops and flats should not be quoted less than as per Table –I of page no. 24 of Tender Documents

(Signature and Seal of Bidder)

Name: _____

Address: _____

Contact no. _____

□

FINANCIAL BID STATEMENT

I/We hereby offer to take up on license basis the space indicated as _____ measuring approximately _____ Sq.ft. (Capet area) (Refer Table-I) at DCRTPP, Colony Commercial Complex, and operate a _____/ (usages other than the usages banned. Refer Annexure B for list banned) retail outlet thereon as per terms of this bidding.

- a. I/We shall submit to HPGCL Rs. _____/-per month for operating at the Demised Premises for a period of 5 years, extendable by another One year from the date of taking over possession.
- b. I/We shall also pay a six months maintenance fee in advance @ Rs.0.75 Per Sq. ft. per month of actual covered area licensed out from HPGCL towards maintenance of common areas and services. I/We agree to start of license from the date of possession / letter or notice for taking over possession/ handing over letter. I/We shall also pay municipal tax or any other charges mentioned in bid document or as applicable from time to time.

I/we confirm that I/we have read and understood the rules and regulations regarding the bidding process for licensing of the site, inspected the conditions of physical infrastructure available on the site, plans and specifications of site and offer my/our acceptance to execute the project as per the terms and conditions contained herein in this document.

I/we require _____ KW of electricity load to operate the retail outlet. I/We also confirm our understanding that provision of the requested electricity load is subject to availability and technical feasibility. Priority supply will be for utilities and services. I/We voluntarily and unequivocally agree not to seek any claim, compensation, damages or any other consideration whatsoever on account of non provision of the required electricity load.

I/We agree to make all payments / deposits related to provision of electricity and consumption thereof. I/we agree to keep this offer for a period of 180 days from the date of submission of bid.

(Signature and Seal of Bidder)

Name: _____

Address: _____

Tel _____

Recently
passport size
Photograph
of bidder

Executive Engineer/CMD-I
For Chief Engineer/DCRTPP
HPGCL, Yamuna Nagar

All STAGE SUMMARY

<u>Before submission of bid</u>				
Sr. No.	Description	Amount	In case of non-deposition	Remarks
1.	EMD	3000/-	Bid will not be considered	
2.	Investment capacity	50,000/- or 25,000/- as per details at page no. 8 of NIT	Bid will not be considered	As per details at page no. 8 of NIT. The bidder shall submit proof of investment capacity alongwith bid submission online
3.	Non blacklisted undertaking	As per details at page no. 8 of NIT, else bid will not be considered		The bidder shall submit non blacklisted undertaking alongwith bid submission online
4.	Information about tenders & lines of trade not allowed	As per annexure- A & B of NIT, else bid will not be considered		The bidder shall submit the details alongwith bid submission online



After submission of bid

After deciding of H-1 bidder by competent authority, the letter of allotment/ intent of respective shop will be issued to firm/ individual and the following payment will have to be made by shopkeeper within the stipulated time.

Sr. no.	Description	Amount	Time period	In case of non - deposition	Remarks
1.	Financial bid statement	-	Before letter of intent	Allotment will be cancelled and EMD will be forfeited	As per page no. 26 of NIT
2.	Security in form of bank guaranty	Rs. 15,000/-	Before taking possession of shop and within 15 days of issue of LOI	Allotment will be cancelled and EMD will be forfeited	Payment in the form of demand draft
3.	License agreement	On Rs. 100/- judicial stamp paper registered 1 st class Magistrate	Before taking possession of shop and within 15 days of issue of LOI	Allotment will be cancelled and security deposited will be forfeited	2 copies at their own cost
4.	Advance rent and mtc. fees	one month advance rent and 6 months advance mtc. fees @ Rs. 0.75 per square feet	Before taking possession of shop and within 15 days of issue of LOI	Allotment will be cancelled and security deposited will be forfeited	Payment in the form of demand draft



The license will be started from the 16th day onwards from date of issue of LOI or date of taking over possession whichever is earlier. No relaxations on this account will be given or considered.

The successful bidder shall establish his shop (payment of all dues, rent agreement and taking possession of

shop) within 45 days of issue of LOI failing which allotment will be cancelled and all standing payment will be forfeited.



After one month, shopkeeper has to submit rent/ license fees of one month advance on or before 7th day of starting month.



After one year of running of shop, the license fees and mtc. fees will be increase annually 10% cumulative.



Non-payment of license fees and other dues within the prescribed date will constitute breach of the terms of this agreement and shall render the license liable to be revoked as per clause 14.0 (Breach of Contract) of agreement. Besides, the LICENSEE shall pay an interest of 24% per annum on the amounts of license fees and other dues payable remaining outstanding after the due date and falling in arrears. Interest shall continue to accrue till the license fees amount is finally squared up. Such interest shall be charged for the full month if the payment of license fees and other dues are not made by the due date with arrears, if any